

HOUSE BILL 1241

By Helton-Haynes

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 29; Title 33; Title 37; Title 39; Title 40; Title
53; Title 56; Title 62; Title 63; Title 68 and Title 71,
relative to women's health.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-15-213(a), is amended by adding the following as new subdivisions:

() "Lethal fetal anomaly" means a fetal condition diagnosed before the twenty-fourth week of pregnancy that a physician, using reasonable medical judgment, determines:

(A) Is incompatible with life outside the womb;

(B) Will not improve with medical intervention; and

(C) Will result in the death of the fetus upon birth or imminently thereafter;

() "Serious risk of substantial and irreversible impairment of a major bodily function" means any medically diagnosed condition that so complicates the pregnancy of a woman as to directly or indirectly cause the substantial and irreversible impairment of a major bodily function. Such conditions include, but are not limited to, preeclampsia, inevitable abortion, and premature rupture of the membranes and, depending upon the circumstances, may also include, but are not limited to, diabetes and multiple sclerosis, but does not include any condition related to the woman's mental health;

SECTION 2. Tennessee Code Annotated, Section 39-15-213, is amended by deleting subdivision (c)(1) and substituting:

(c)

(1) Notwithstanding subsection (b), a person who performs or attempts to perform an abortion does not commit the offense of criminal abortion if the abortion is performed or attempted by a licensed physician in a licensed hospital or ambulatory surgical treatment center and the physician:

(A)

(i) Determined, using reasonable medical judgment, based upon the facts known to the physician at the time, that the abortion was necessary to prevent the death of the pregnant woman or to prevent serious risk of substantial and irreversible impairment of a major bodily function of the pregnant woman; and

(ii) Performs or attempts to perform the abortion in the manner which, using reasonable medical judgment, based upon the facts known to the physician at the time, provides the best opportunity for the unborn child to survive, unless using reasonable medical judgment, the physician determines termination of the pregnancy in that manner would pose a greater risk of death to the pregnant woman or substantial and irreversible impairment of a major bodily function; or

(B)

(i) Determined that the unborn child had a lethal fetal anomaly, and:

(a) The diagnosis was concurred with in writing by two (2) other physicians and such concurrence was entered into the pregnant woman's medical record; and

(b) The physician informed the pregnant woman at the time of diagnosis, both verbally and in writing, that perinatal hospice and perinatal palliative care services are available and are an alternative to abortion; and

(ii) Performs or attempts to perform:

(a) An abortion to address the lethal fetal anomaly;

or

(b) A premature delivery of an unborn child with a lethal fetal anomaly in order to avoid the risk of intrauterine demise or avoid a health risk to the pregnant woman.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.